

**Name Change and/or Sex
Designation Change Petition
for Individual Minor (person under 18)**

UCS-NC2 (09/2024)

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nycourthelp.gov_____
Court

County of _____

Petitioner(s) (Parent or Guardian Name): _____

Index Number: _____

As Parent(s) or Guardian(s) of (Minor's Present Name): _____

Relationship to Minor (select one):

☐ Parent(s)☐ Guardian(s)

I am/We are requesting a Court Order on behalf of the minor for the following (check all that apply):

☐ Name Change (complete Section A below)☐ Sex Designation Change (complete Section B below)**Note:**

- A court order is not required under New York law to change the minor's sex designation on an identity document (birth certificate, driver's license, photo ID, etc.) issued in New York.
- Every state has its own requirements for a sex designation change. Some states may not honor sex designation change orders from New York courts. If you want to change the minor's identity document issued in another state, you should check that state's requirements before you file an application.
- This application is for a declaratory judgment. A declaratory judgment states a fact under the law. If granted, the sex designation change order legally recognizes the minor's gender identity.

RECORDS SEALING: The clerk will temporarily make your case inaccessible to the public (the minor's name and case information will be private) until the judge makes a final decision about sealing your case.**SECTION A: NAME CHANGE** (complete this section for a name change)

1. Minor's Requested New Name: _____
2. Minor's Place of Birth (Street Address, City/Town/Village, State, Zip, Country): _____

Note: You must attach **proof of birth** to this petition.

- If the minor was born outside of the State of New York, proof of birth can include a birth certificate, passport, or any other legal document which shows the date and place of the minor's birth.

ADA Accommodations
ada@nycourts.govSpoken or Sign Language Interpreters
interpreter@nycourts.gov1-800-COURT-NY
(268-7869)

- If the minor was born in the State of New York, **you must** attach **one** of the following:
 - Certified Copy of the minor's government-issued birth document (i.e., Birth Certificate/Certification of Birth):
 - If the minor was born in New York City, you can get a certified copy of your birth document from the [New York City Department of Health and Mental Hygiene](#)
 - If the minor was born outside New York City, you can get a certified copy of the minor birth document from the [New York State Department of Health's Vital Records Department](#)
 - Certified Transcript of the minor's Birth Certificate
 - Certificate from Commissioner or local Board of Health stating no such Certificate is available

3. Has the minor ever been convicted of a crime? ☐ Yes ☐ No

If 'Yes' to question 3, you must answer questions 4-5.

4. Court where the minor was convicted: _____

5. Crime for which the minor was convicted: _____

6. Has the minor ever filed for bankruptcy? Yes No

7. Are there any judgments or liens of record against the minor? Yes No

8. Is the minor a party to any actions or proceedings? Yes No

If you answered 'Yes' to question 6, 7 or 8, provide details below, including the court where it was filed, the date it was filed, and the case number (if known).

9. Is the minor currently married? Yes No

10. Has the minor been previously married? Yes No

11. Does the minor have any children under 21? Yes No

12. Does the minor have to pay child support? Yes No

If 'Yes' to question 12, you must answer questions 13-15.

13. Are child support payments satisfied and up to date? Yes No

If 'No,' how much is owed? \$ _____

14. Court that issued the child support order: _____

15. Child Support Collections Unit: _____

16. Is the minor responsible for spousal support? Yes No

If 'Yes' to question 16, you must answer questions 17-18.

17. Are spousal support payments satisfied and up to date? Yes No

If 'No,' how much is owed? \$ _____

18. Court that issued the spousal support order: _____

19. Was a name change petition previously filed for the minor in any court? **Yes** **No**

If **'Yes,'** provide details below, including the court where the petition was filed, the date it was filed, the case number (if known), and the result.

20. What are the reasons for changing the minor's name?

Provide details below.

SECTION B: SEX DESIGNATION CHANGE (complete this section for a sex designation change)

21. Minor's Requested New Sex Designation: _____

22. Was a sex designation change petition previously filed for the minor in any court?

Yes **No**

If **'Yes,'** provide details below, including the court where you filed the petition, the date that you filed it, the case number (if known), and the result.

23. Do you want to provide your reasons for changing the minor sex designation?

☐ **Yes** **No**

If **'Yes,'** you may provide details below. If **'No,'** leave this question blank. Please note, this information is optional and is not required for a court order to change your sex designation.

SECTION C: PERSONAL INFORMATION (all applicants must complete this section)**24. Minor's Present Name:** _____**25. Minor's Age:** _____**26. Minor's Date of Birth** (Month/Day/Year): _____**27. Minor's Current Address** (Street Address, City/Town/Village, State, Zip, Country):
_____**Note:** The court may require you to show proof of minor's address when you file your petition.**28. Should this court record be sealed for the minor's personal safety?** **Yes** **No**

If 'Yes,' provide details below.

29. Have you attached any supporting documents or additional pages? **Yes** **No**

If 'Yes,' list the name or a description of the document(s) below.

30. I respectfully request a Court Order permitting the following for the minor

(check all that apply)

name change

sex designation change

Petitioner Signature_____
Date_____
Co-Petitioner Signature (if any)_____
Date

NON-PETITIONING PARENT/LEGAL GUARDIAN'S CONSENT

Note: When the minor has more than one parent and/or legal guardian and not all parents or legal guardians are included as petitioners, the consent of the non-petitioning parent(s) or guardian(s) is required. Skip this section if all parents and/or guardians are included above as petitioners.

State of New York, County of _____ ss.:

I, _____, being duly sworn, say I am the _____ parent
legal guardian of the minor child. I am over eighteen years of age and reside at:

_____.

I have read the above petition requesting my child's (check all that apply)

name change from _____ to _____
and/or sex designation change to _____, as applicable, and I consent to this change.

**Non-Petitioning Parent/Legal Guardian
Signature in Presence of Notary**

Sworn to before me this _____
day of _____, 20____.

Notary Public

NON-PETITIONING PARENT/LEGAL GUARDIAN'S CONSENT

Note: When the minor has more than one parent and/or legal guardian and not all parents or legal guardians are included as petitioners, the consent of the non-petitioning parent(s) or guardian(s) is required. Skip this section if all parents and/or guardians are included above as petitioners.

State of New York, County of _____ ss.:

I, _____, being duly sworn, say I am the _____ parent
legal guardian of the minor child. I am over eighteen years of age and reside at:

_____.

I have read the above petition requesting my child's (check all that apply)

name change from _____ to _____
and/or ☐ sex designation change to _____, as applicable, and I consent to this change.

**Non-Petitioning Parent/Legal Guardian
Signature in Presence of Notary**

Sworn to before me this _____
day of _____, 20____.

Notary Public

MINOR'S CONSENT

Note: The minor's consent is required if the minor is fourteen years of age or older, but less than 18 years of age. Skip this section if the minor is less than fourteen years of age.

State of New York, County of _____ ss.:

I, _____, am a minor child fourteen years of age or older, and less than 18 years of age. I reside at _____. I have read the above petition requesting my (check all that apply)
name change from _____ to _____
and/or sex designation change to _____, as applicable, and I consent to this change.

**Minor Signature
in Presence of Notary**

Sworn to before me this _____
day of _____, 20____.

Notary Public

VERIFICATION

State of New York, County of _____ ss.:

I/We, _____, the petitioner, (and, the co-petitioner, if any,) being duly sworn, have read the above petition and say that the information in the petition is true and accurate to the best of my/our knowledge and belief.

**Petitioner Signature
in Presence of Notary**

Sworn to before me this _____
day of _____, 20____.

Notary Public

**Co-Petitioner Signature (if any)
in Presence of Notary**

Sworn to before me this _____
day of _____, 20____.

Notary Public

Note: You can complete and submit a Fee Waiver Application form asking the court to waive the filing fees for your application if you qualify.

- A fillable Fee Waiver Application form is available at:
<https://ww2.nycourts.gov/fee-waiver-application-36856>
- For more information regarding Fee Waiver, go to:
<https://www.nycourts.gov/CourtHelp/GoingToCourt/feeWaiver.shtml>